

Shri Jitun Datta vs Smt. Rakhi Sukladas (Datta) on 28 May, 2025

Author: T. Amarnath Goud

Bench: T. Amarnath Goud

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HIGH COURT OF TRIPURA
AGARTALA

Mat. App. 36 of 2024

Shri Jitun Datta

.....Appellant(s)

Versus

Smt. Rakhi Sukladas (Datta)

.....Respondent(s)

For the Appellant(s) : Ms. Piyali Chakraborty, Advocate.

Mr. Debajit Biswas, Advocate.

For the Respondent(s) : Mr. D.K. Das Chawdhury, Advocate. Date of hearing & delivery of judgment
a n d o r d e r : 2 8 . 5 . 2 0 2 5 W h e t h e r f i t f o r r e p o r t i n g : N o .

_____ HON'BLE MR. JUSTICE T. AMARNATH GOUD
HON'BLE MR. JUSTICE BISWAJIT PALIT Judgment & Order (Oral) [T. Amarnath Goud. J.] Heard
Mr. D. Biswas, learned counsel appearing for the appellant-husband and Mr. D.K. Das Chawdhury,
learned counsel appearing for the respondent-wife. [2] The present appeal being Mat. App. 36 of
2024 is filed under Section 19 (1) of the Family Courts Act read with Section 28 of the Hindu
Marriage Act, 1955 against the Judgment and decree dated 27.09.2024 passed by the learned Judge,
Family Court, Udaipur, Gomati District, Tripura in Title Suit (Divorce) 91 of 2019.

[3] It is the case of the appellant that he filed a petition under Section 13(1)(i) and Section 13(1) (ib)
of the Hindu Marriage Act, 1955 for a decree of dissolution of marriage solemnized in the year 2018
on the ground of voluntary sexual intercourse with any person other than her spouse and desertion.
The respondent on receipt of summons from the learned Court below, appeared before the learned
Court and contested the case by submitting written statement. Evidences were taken up after
framing of issues and both the parties introduced witnesses before the learned trial Court and the

witnesses were also cross examined. Thereafter, arguments of both the sides were heard and on perusal of the evidences on record, learned Court below dismissed the application filed by the appellant herein for grant of decree of divorce by the impugned Judgment and decree dated 27.09.2024 passed in T.S. (Div.) 91 of 2019. Being aggrieved by the said Judgment and decree dated 27.09.2024 passed by the learned Court below, the appellant herein has preferred the instant appeal seeking the following reliefs:

"(i) Admit this appeal;

(ii) Issue notice upon the Respondent;

(iii) After hearing the party set aside and quash the Judgment and order dated 27.09.2024 in T.S. (Div) 91 of 2019 by the Learned Judge, Family Court, Udaipur, Gomati Tripura forthwith and in no time also grant a decree of divorce dissolving the marriage of the Petitioner and the Respondent for relieving the Appellant from the marital obligation or pass such order or orders, direction or directions as the Hon'ble High Court may deem fit and proper having regards to the circumstances of the case.
....."

[4] It is contended on behalf of the appellant that the respondent wilfully deserted the appellant on 29.09.2019 from the rented house where the stepmother-in-law of the respondent was not living, but, the learned Court below could not consider the said fact while passing the impugned judgment dated 27.09.2024. It is further contended that the appellant is a monthly rated worker on No Work No Pay basis under District Rural Development Agency, Gomati District, Udaipur and presently, he is working in the office of the DMMU of TRLM, Gomati District at wages rate of Rs.260/- per day. Mr. D. Biswas, learned counsel for the appellant, therefore, urges this Court to set aside the impugned order dated 27.09.2024 passed by the learned Court below and to grant decree of divorce in favour of the appellant herein.

[5] On the other hand, Mr. D.K. Das Chawdhury, learned counsel appearing for the respondent wife opposes the submissions made on behalf of the appellant. He submits that the appellant and his step-mother compelled the respondent wife to live separately from her husband.

[6] Heard learned counsel appearing for the parties. Perused the record.

[7] It is seen from record that the appellant herein preferred a suit for dissolution of marriage under Section 13(1)(i) and 13(1)(ib) of the Hindu Marriage Act, 1955, against the respondent wife on the ground of voluntary sexual intercourse with any person other than her spouse and desertion. The respondent wife contested the suit by filing her written statement. It is mentioned in the written statement that after two months of marriage, the respondent discovered the plaintiff (appellant herein) in a compromising position with his step mother in her room and as the respondent protested, both of them tortured her physically. It is also contended that, as the respondent during her stay with the appellant herein became pregnant, her stepmother-in-law terminated her pregnancy administering medicine forcefully and she threatened her not to get pregnant with the

warning of serious consequences. Thereafter, the respondent again became pregnant and her stepmother-in-law tried to terminate her pregnancy and she was driven away and compelled to take shelter to her parental house and subsequently, gave birth to her son.

[8] Hence, in view of the above serious allegations brought against the appellant and his stepmother, since the appellant and respondent are living separately from the year 2019, this Court feels that at this stage, there is no scope of re- union of the parties and to construct the matrimonial tie between them would be a futile exercise.

[9] However, considering all the facts and circumstances of the case, this Court is of the opinion that ends of justice would be met if the appellant pays a total sum of Rs.10,00,000/- as permanent alimony regarding the financial support that the wife will receive after the divorce or separation. Accordingly, this Court awards permanent alimony of Rs.10,00,000/- (rupees ten lakhs) to the respondent-wife which will be paid by the appellant- husband. Out of the total award of Rs.10,00,000/-, an amount of Rs.5 lakhs shall be paid as the first instalment w.e.f. 1st July, 2025 and the rest amount of Rs.5,00,000/- along with all other arrears of maintenance, if any, shall be paid by the appellant- husband on the first day of every month in five equal monthly instalments w.e.f. 1st August, 2025 onwards to the respondent- wife. Resultantly, the marriage between the parties is dissolved and the decree of divorce is granted in favour of the appellant husband.

With the above observations and directions, the instant appeal is allowed to the extent as indicated above and accordingly, the same is disposed of. As a sequel, miscellaneous application(s), pending if any, shall also stand closed.

B. PALIT, J

T. AMARNATH GOUD, J

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